

Table of Statutes Referred to in this Act.

Short Title.	Session and Chapter.
Public Health (Ireland) Act, 1878 ...	41 & 42 Vict. c. 52.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Income Tax Act, 1918	9 & 10 Geo. 5. c. 40.
Finance Act, 1922	12 & 13 Geo. 5. c. 17.
Rating and Valuation Act, 1925	15 & 16 Geo. 5. c. 90.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
Harbours, Piers and Ferries (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 28.
Limitation Act, 1939	2 & 3 Geo. 6. c. 21.
Civil Defence Act, 1939	2 & 3 Geo. 6. c. 31.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
War Risks Insurance Act, 1939	2 & 3 Geo. 6. c. 57.
Finance (No. 2) Act, 1939	2 & 3 Geo. 6. c. 109.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
War Damage Act, 1941	4 & 5 Geo. 6. c. 12.
Finance Act, 1941	4 & 5 Geo. 6. c. 30.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Income Tax Act, 1945	8 & 9 Geo. 6. c. 32.
Requisitioned Land and War Works Act, 1945	8 & 9 Geo. 6. c. 43.
War Damage (Valuation Appeals) Act, 1945	9 & 10 Geo. 6. c. 8.
Finance (No. 2) Act, 1945	9 & 10 Geo. 6. c. 13.
Miscellaneous Financial Provisions Act, 1946	9 & 10 Geo. 6. c. 40.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6. c. 58.
Civil Aviation Act, 1946	9 & 10 Geo. 6. c. 70.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Electricity Act, 1947	10 & 11 Geo. 6. c. 54.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.

CHAPTER 37

Agriculture (Miscellaneous Provisions) Act, 1949

ARRANGEMENT OF SECTIONS.

Section.

1. Schemes for subsidy payments in respect of calves.
2. Supplementary provisions as to calf subsidy schemes.
3. Provisions as to imported calves.
4. Payments by Minister in respect of certain artificial insemination services.
5. Power of Ministers to make schemes for subsidising grass and forage crop conservation.
6. Powers of Milk Marketing Boards to conserve grass and forage crops and provide artificial insemination services.
7. Miscellaneous amendments of enactments relating to milk and dairies.

Section.

8. Provisions as to training for agricultural occupations.
9. Minister's right to certain tenants' compensation on giving up requisitioned land.
10. Amendments with respect to certain smallholdings.
11. Amendments as to penalties under Destructive Insects and Pests Act, 1877.
12. Power to dispose of machinery acquired under Agricultural Development Act, 1939.
13. Winding up of the Diseases of Animals Account.
14. Payment into Exchequer of balance in Cattle Fund.
15. Definition of appropriate Minister.
16. Extension to Northern Ireland.
17. Short title.

SCHEDULE :

Part I—Section 4 (1) and part of Section 4 (2) of Food and Drugs (Milk and Dairies) Act, 1944.

Part II—Section 11 (4) (c) of Agricultural Holdings Act, 1948.

An Act to amend the law relating to agriculture, including certain enactments relating to milk and dairies.
 [31st May 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Schemes for
subsidy
payments in
respect of
calves.

1.—(1) The appropriate Minister may, in accordance with a scheme made by him with the approval of the Treasury, make, out of moneys provided by Parliament, payments in respect of calves of such descriptions as may be specified in the scheme, being calves born during the period beginning with the twenty-first day of August, nineteen hundred and forty-seven and ending with the first day of October, nineteen hundred and forty-nine, and reared to such age as may be so specified.

(2) Subject to the provisions of the next following section, any payment falling to be made in accordance with any such scheme as aforesaid in respect of any calf shall be made to the person who is the owner of the calf at the time when it is certified in accordance with the scheme as eligible for such a payment.

(3) The amount that may be paid under any such scheme as aforesaid in respect of a calf shall—

- (a) in the case of a steer calf, be four pounds ; and
- (b) in the case of a heifer calf, be three pounds.

(4) The appropriate Minister may, with the approval of the Treasury, by order provide for extending the powers conferred by the preceding provisions of this section so as to enable

schemes to be made thereunder in respect of calves born during the period beginning with the second day of October, nineteen hundred and forty-nine, and ending with such date not later than the thirtieth day of September, nineteen hundred and fifty-one, as may be specified in the order, and any such order may modify the rates of payment to be made under any such scheme and may provide for fixing different rates in respect of different classes or descriptions of calves.

(5) A scheme made under this section may be a separate scheme for England and Wales or for Scotland or for Northern Ireland, or may be a joint scheme for all three countries or for any two of those countries.

2.—(1) A scheme made under the preceding section may contain provisions—

Supplementary provisions as to calf subsidy schemes.

- (a) for securing that no payment under the scheme shall be made unless application therefor is made at the time and in the manner specified in the scheme;
- (b) providing for the certification and marking of calves in respect of which an application for any such payment is made;
- (c) generally for securing that payments under the scheme are properly made; and
- (d) for prohibiting the assignment of any right to a payment under the scheme;

and may contain such incidental and supplementary provisions as appear to the appropriate Minister to be requisite or expedient for the purposes of the scheme.

(2) If any person, with intent to deceive, alters or defaces a mark placed on a calf in pursuance of any such scheme, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) If any person obstructs any person in the marking, in accordance with any such scheme, of a calf in respect of which an application for a payment under that scheme has been made, he shall be liable on summary conviction to a fine not exceeding five pounds.

(4) The power to make such a scheme and the power to make an order under subsection (4) of the preceding section shall be construed as including power to vary or revoke the scheme or order by a subsequent scheme or order.

(5) The power to make, vary or revoke such a scheme shall be exercisable by statutory instrument, and any such statutory

instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) The power to make, vary or revoke an order under subsection (4) of the preceding section shall be exercisable by statutory instrument, and no such order shall be made unless a draft thereof has been laid before Parliament and has been approved by a resolution of each House of Parliament.

Provisions as
to imported
calves.

3.—(1) With a view to ensuring that payments under any scheme made under the preceding provisions of this Act are properly made, the appropriate Minister may by order provide (subject to such exceptions, if any, as may be specified in the order) for the marking of calves imported or brought into the United Kingdom.

(2) If any person—

(a) contravenes or fails to comply with an order made under the preceding subsection; or

(b) with intent to deceive alters or defaces a mark placed on a calf in pursuance of an order so made;

he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

Payments by
Minister in
respect of
certain
artificial
insemination
services.

4.—(1) Where any centre providing services of artificial insemination for cattle (hereafter in this section referred to as a "cattle insemination centre") in respect of which a licence is or was for the time being in force under section seventeen of the Agriculture (Miscellaneous Provisions) Act, 1943, provides or has provided, during the period beginning with the first day of October, nineteen hundred and forty-seven and ending with the thirty-first day of March, nineteen hundred and fifty-one, a service of artificial insemination from beef bulls of such breeds as may be approved by the appropriate Minister, being a service provided free of charge or for charges lower than the lowest charges made for any such service provided by that centre from any other bulls,—

(a) the appropriate Minister may, with the consent of the Treasury, make out of moneys provided by Parliament payments to the person maintaining the centre not exceeding, in the case of a service free of charge, the amounts which would have been payable by persons availing themselves of the service if it had been provided for the same charges as the lowest charges aforesaid or, in any other case, the difference between such amounts as aforesaid and the amounts actually paid or payable by such persons as aforesaid; and

(b) if, as respects the whole or any part of the said period, a grant under section two of the Agriculture (Artificial Insemination) Act, 1946, is not or was not payable in respect of the centre providing the service aforesaid, the appropriate Minister may, with the consent of the Treasury, make out of moneys provided by Parliament additional payments to the person maintaining the centre not exceeding the total amount of the expenses which the Minister is satisfied have been reasonably incurred in providing the said service during the said period or, as the case may be, that part thereof, less the amount of any payments made under the preceding paragraph in respect of such provision and, where the service is not free of charge, the amounts paid or payable by persons availing themselves of the service.

(2) Where any such service as aforesaid is or has been provided by any such cattle insemination centre with semen furnished by any other such centre directly, or through another such centre, the appropriate Minister may apportion between the centres concerned the payments that would otherwise have been made under the preceding subsection to the first-mentioned centre.

(3) The appropriate Minister may give to the person maintaining any such cattle insemination centre directions requiring him to provide such a service as aforesaid during any period specified in the directions (being a period in respect of which payments may be made under this section), and the directions may specify the extent and nature of the service to be provided.

(4) Payments made under this section shall be taken into account in calculating, for the purposes of the Agriculture (Artificial Insemination) Act, 1946, the losses incurred in the operation of any cattle insemination centre.

5.—(1) The appropriate Minister may, with the approval of the Treasury, make schemes for the provision, out of moneys provided by Parliament—

(i) of financial assistance by way of grant or loan, subject to such conditions as may be specified in the scheme, to the following persons—

(a) any farmer growing grass or forage crops ; or

(b) any farmers' co-operative society or organisation carrying on business for the mutual benefit of the farmers ; or

(c) any board administering any marketing scheme in force under the Agricultural Marketing Acts, 1931 and 1933 ;

in respect of expenses incurred, during the period beginning with the twenty-first day of August, nineteen

Power of
Ministers to
make schemes
for subsidising
grass and
forage crop
conservation.

- hundred and forty-seven, and ending with the thirty-first day of March, nineteen hundred and fifty-two, in the conservation of grass and forage crops; and
- (ii) of financial assistance by way of loan, subject to such conditions as aforesaid, to any person in respect of expenses incurred during the said period in the acquisition or installation of plant or equipment for the artificial drying of grass or forage crops.

(2) A scheme made under this section may, in particular, provide for assistance to be given in respect of expenses incurred in the establishment or acquisition by any such society, organisation or board as aforesaid of any centre for the artificial drying of grass or forage crops.

(3) A scheme made under this section may be a separate scheme for England and Wales or for Scotland or for Northern Ireland, or may be a joint scheme for all three countries or for any two of those countries.

(4) The power to make such a scheme shall be construed as including power to vary or revoke the scheme by a subsequent scheme.

(5) The power to make, vary or revoke a scheme conferred by this section shall be exercisable by statutory instrument and any such statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Powers of
Milk
Marketing
Boards to
conserve grass
and forage
crops and
provide
artificial
insemination
services.

6.—(1) Notwithstanding anything in the Agricultural Marketing Acts, 1931 and 1933, or in any milk marketing scheme in force under those Acts, the board administering any such scheme shall have power and shall be deemed always to have had power, with the approval of the appropriate Minister, to establish or acquire a centre for the artificial drying of grass and forage crops and to operate and maintain that centre and to carry on any activity reasonably incidental thereto.

(2) Without prejudice to the provisions of the Agricultural Marketing Acts, 1931 and 1933, relating to the powers that may be conferred on agricultural marketing boards by marketing schemes in force under those Acts, section five of the Agriculture (Artificial Insemination) Act, 1946 (which empowers a milk marketing board to provide services of artificial insemination for cattle owned by persons not being registered producers of milk) shall have effect, and shall be deemed always to have had effect, as if the words "owned by persons not being registered producers of milk" were omitted.

(3) There shall be paid out of moneys provided by Parliament any increase attributable to this section in the sums payable, out

of moneys so provided, under section eleven of the Agricultural Marketing Act, 1931, to the Agricultural Marketing Fund and the Agricultural Marketing (Scotland) Fund.

7.—(1) The Minister of Health may, with the approval of the Treasury, repay out of moneys provided by Parliament such part, not exceeding three quarters, as he may with such approval determine, of any sums paid by a local authority (within the meaning of the Food and Drugs Act, 1938) by way of compensation to any person for damage or loss sustained by him by reason of any prohibition or restriction imposed by regulations made under section twenty of the said Act, as amended by the Food and Drugs (Milk and Dairies) Act, 1944, on the sale, supply or use of milk which is infected or suspected of being infected.

Miscellaneous
amendments of
enactments
relating to
milk and
dairies.

(2) Subsection (1) and paragraph (b) of subsection (2) of section four of the said Food and Drugs (Milk and Dairies) Act, 1944 (which make certain modifications, in relation to dairy farms and the registration of dairy farmers, of provisions of the Food and Drugs Act, 1938, relating to the authorities who are empowered or required to enforce and execute regulations made under that Act) shall each be amended by the insertion after the words "dairy farmer" of the words "except any such regulation as is made for the purposes of paragraph (f) or paragraph (g) of subsection (1) of section twenty of the principal Act", and accordingly the said provisions shall have effect as set out in Part I of the Schedule to this Act.

(3) There shall be paid out of moneys provided by Parliament to the chairman of any such tribunal as is referred to in subsection (3) of section one of the said Food and Drugs (Milk and Dairies) Act, 1944 (which provides for the constitution of a tribunal for the hearing of objections to a refusal or cancellation of registration of a dairy farm or dairy farmer) such remuneration (by way of salary or fees) and such allowances as the Minister of Agriculture and Fisheries may, with the approval of the Treasury, determine.

8.—(1) The appropriate Minister may, with the approval of the Treasury, provide, or make arrangements for the provision by other persons of, facilities for the training in agricultural occupations of persons, whether employed or not, who are above the upper limit of the compulsory school age, for the purpose of assisting those persons to fit themselves for, obtain and retain employment therein suitable to their age and capacity.

Provisions as
to training for
agricultural
occupations.

(2) Where the appropriate Minister makes arrangements for the provision of such facilities by other persons, he may, in such cases and subject to such conditions as he may with the approval of the Treasury determine, defray or contribute towards the cost of the facilities provided.

(3) References in this section to the provision of facilities for such training as aforesaid shall be construed as including references—

- (a) to the making of payments to persons who avail themselves of the facilities, in respect of their maintenance or in respect of their travelling expenses;
- (b) to the provision of residential accommodation, board and facilities for recreation and welfare for such persons; and
- (c) to the provision of any other facilities or services incidental to the purposes of the training.

(4) Expenses incurred by the appropriate Minister under this section shall, subject to the next following subsection, be defrayed out of moneys provided by Parliament.

(5) Subsection (6) of section three of the Employment and Training Act, 1948 (which provides for the payment out of the National Insurance Fund of contributions, not exceeding half a million pounds in any year, towards certain expenses incurred by the Minister of Labour and National Service in providing training courses under that section) shall have effect as if the reference to expenses incurred by that Minister under that section included a reference to expenses incurred by the appropriate Minister under this section, and any sums paid out of the said Fund by virtue of this subsection shall be paid as an appropriation in aid of moneys provided by Parliament for the last-mentioned expenses.

(6) In this section the expression “agricultural occupation” includes horticultural occupation.

Minister's
right to certain
tenants'
compensation
on giving up
requisitioned
land.

9.—(1) Where possession of any land has been taken for agricultural purposes by virtue of powers conferred by any Defence Regulation, whether by the appropriate Minister or any person acting on his authority, the appropriate Minister shall be entitled, and be deemed always to have been entitled, on the giving up of such possession, to obtain from the person to whom possession is or was given up the payments mentioned in the following provisions of this section, in all respects as if the appropriate Minister had, throughout the period of such possession, been in possession by virtue of a contract of tenancy and had given up possession on the termination of that contract.

(2) The payments to which the appropriate Minister is, or is deemed to have been, entitled as aforesaid are, in the case of land in England and Wales, the payments of compensation which a tenant is or was entitled to obtain from his landlord either under section forty-seven of the Agricultural Holdings Act, 1948, or under section twenty-two of the Agriculture Act, 1947, or under custom, according to the date of the termination of his tenancy, being compensation for the matters specified in Part II of the

Fourth Schedule to the Agricultural Holdings Act, 1948 (which relates to growing crops, produce, seeds sown and cultivations, fallows and acts of husbandry, and pasture laid down):

Provided that proviso (c) to subsection (1) of section forty-seven of the Agricultural Holdings Act, 1948, and paragraph (b) of subsection (2) of section thirty-four of the Agriculture Act, 1947 (each of which provisions enables a tenant in certain circumstances to exclude the provisions of those respective Acts relating to such compensation) shall not apply in relation to any claim for such compensation made by the appropriate Minister.

(3) The payments to which the appropriate Minister is, or is deemed to have been, entitled as aforesaid are, in the case of land in Scotland, such payments in respect of things done by him or on his behalf for the purpose of the cultivation of the land and in respect of seeds, tillage, growing crops and other similar matters as he might reasonably have expected to receive if he had been an outgoing tenant under a lease expiring on the day when possession is or was given up or under custom.

(4) Any sums received by the appropriate Minister under this section shall be paid into the Exchequer.

10.—(1) Subsection (1) of section eleven of the Agricultural Holdings Act, 1948 (which gives a tenant of an agricultural holding full rights of disposal of produce and cropping of arable land notwithstanding any contrary provisions of his contract of tenancy) shall not apply to a tenancy of a smallholding as defined in Part IV of the Agriculture Act, 1947, granted in pursuance of a scheme which provides for the disposal of the produce of such holdings or provides other centralised services for the use of the tenants of such holdings, being in either case a scheme approved by the Minister of Agriculture and Fisheries for the purposes of paragraph (c) of subsection (4) of the said section eleven; and accordingly in the said paragraph, for the word “being” there shall be substituted the words “or a scheme which provides for the disposal of the produce of such holdings or provides other centralised services for the use of the tenants of such holdings, being in any case”, and the said paragraph shall have effect as set out in Part II of the Schedule to this Act.

Amendments
with respect to
certain small-
holdings.

(2) Where it appears to the said Minister that the provisions of any scheme approved by him for the purposes of paragraph (c) of subsection (4) of the said section eleven, as amended by the preceding subsection, are not being satisfactorily carried out, he may serve a notice on the persons responsible for the management of the scheme stating that on such date, not being earlier than one month after the service of the notice, as may be specified therein, the provisions of subsection (1) of the said section eleven will apply to the tenancies granted in pursuance of the scheme, and that his approval to that scheme will then cease to

have effect; and the Minister shall give to the said persons an opportunity of making representations to him and, if the said notice is not withdrawn by the Minister before the said date, the said subsection (1) shall as from that date apply to the said tenancies.

(3) The power of a smallholdings authority under section fifty-one of the Agriculture Act, 1947, to carry out arrangements for the disposal by them of the produce of smallholdings provided by them shall not be limited to the carrying out of such arrangements for the purposes of co-operative schemes for the conduct of such smallholdings, and accordingly paragraph (b) of subsection (3) of the said section fifty-one shall have effect with the omission of the words "for the purposes of such schemes as aforesaid".

Amendments
as to penalties
under
Destructive
Insects Act,
1877.

11. An order made under section two of the Destructive Insects Act, 1877, as amended by any subsequent enactment, for preventing the spreading in Great Britain of the colorado beetle may, instead of imposing penalties not exceeding ten pounds, or, in the case of a second or subsequent offence, not exceeding fifty pounds—

(a) provide that any person who is guilty of any offence under the order relating to the keeping of living specimens of the said insect in any stage of existence, or to the distribution in any manner of such specimens, shall be liable, on summary conviction, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment;

(b) provide that any person who is guilty of any other offence under the order shall be liable, on summary conviction, to a fine not exceeding fifty pounds;

and accordingly so much of the said section two as so amended as provides for the imposition, recovery and application of penalties shall cease to have effect in relation to offences under any such order as aforesaid.

Power to
dispose of
machinery
acquired under
Agricultural
Development
Act, 1939.

12.—(1) Stocks of tractors and machinery acquired by the Minister of Agriculture and Fisheries under section thirty-one of the Agricultural Development Act, 1939 (which empowered that Minister to acquire a reserve of agricultural machinery) may be disposed of by him if and so far as he thinks fit, and accordingly so much of subsection (2) of the said section thirty-one as requires that Minister, with certain exceptions, to hold stocks so acquired by him as aforesaid until the disposal thereof is authorised by or under an Act of Parliament shall cease to have effect.

(2) Any sums received by the said Minister representing the net proceeds of any disposal of such stocks shall be paid into

the Exchequer, and accordingly subsection (3) of the said section thirty-one shall cease to have effect.

13. The Diseases of Animals Account (which was opened at the Bank of England under section two of the Contagious Diseases (Animals) (Pleuro-Pneumonia) Act, 1890, and renamed by section eighteen of the Agriculture Act, 1937) shall, in accordance with directions of the Treasury, be wound up as at such date as the Treasury may direct, being a date not later than the end of the financial year next after that in which this Act is passed, and—

Winding up
of the Diseases
of Animals
Account.

- (a) any payments which apart from this section would be authorised to be paid out of that Account shall, if falling due after the date so directed for winding up that Account, be defrayed out of moneys provided by Parliament;
- (b) any receipts after the said date which apart from this section would be authorised to be paid into that Account shall be paid into the Exchequer.

14. Any sums which at the date of the passing of this Act are standing to the credit of the Cattle Fund (which was established under section one of the Cattle Industry (Emergency Provisions) Act, 1934, and was made the fund for the purposes of the Livestock Industry Act, 1937), shall be paid into the Exchequer.

Payment into
Exchequer of
balance in
Cattle Fund.

15.—(1) In sections one to three of this Act and in section five of this Act the expression “the appropriate Minister” means—

Definition of
appropriate
Minister.

- (a) in relation to a separate scheme made under the said section one or, as the case may be, the said section five for England and Wales or for Northern Ireland, or a joint scheme for England and Wales and Northern Ireland, the Minister of Agriculture and Fisheries;
- (b) in relation to any other joint scheme, the Minister of Agriculture and Fisheries and the Secretary of State acting jointly; and
- (c) in relation to a separate scheme for Scotland, the Secretary of State.

(2) In section six of this Act the expression “the appropriate Minister” means the Minister or Ministers, as the case may be, by whom the relevant marketing scheme was approved.

(3) In any other section of this Act the expression “the appropriate Minister” means—

- (a) in relation to England and Wales, the Minister of Agriculture and Fisheries;
- (b) in relation to Scotland, the Secretary of State.

Extension to
Northern
Ireland.

16.—(1) Sections one to three and section five of this Act shall extend to Northern Ireland but, save as aforesaid and without prejudice to the provisions of section fourteen of this Act, this Act shall not extend to Northern Ireland.

(2) In the application of sections two and three of this Act to Northern Ireland, the expression “summary conviction” means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act (including any Act of the Parliament of Northern Ireland) amending that Act.

Short title.

17. This Act may be cited as the *Agriculture (Miscellaneous Provisions) Act, 1949*.

SCHEDULE

PART I

Sections 7 & 10. **SECTION 4 (1) AND PART OF SECTION 4 (2) OF FOOD AND DRUGS
(MILK AND DAIRIES) ACT, 1944**

4.—(1) The power of a county council or local authority under subsection (3) of section sixty-five of the principal Act to institute proceedings under any regulation made under that Act, shall not include power to institute proceedings against any person for contravening or failing to comply with the Milk and Dairies Regulations in respect of a dairy farm or in respect of the registration of persons carrying on or proposing to carry on the trade of a dairy farmer, except any such regulation as is made for the purposes of paragraph (f) or paragraph (g) of subsection (1) of section twenty of the principal Act.

(2) Section ninety-two of the principal Act (which contains supplementary provisions as to Milk and Dairies Regulations and other regulations) shall apply to Milk (Special Designation) Regulations as it applies to Milk and Dairies Regulations, but in its application to Milk (Special Designation) Regulations and Milk and Dairies Regulations, shall have effect subject to the following modifications:

.....

- (b) subsection (3) (which requires the Regulations to specify the authorities by whom they are to be enforced and executed) shall not apply to the enforcement or execution of Milk and Dairies Regulations in respect of dairy farms or in respect of the registration of persons carrying on the trade of a dairy farmer, except any such regulation as is made for the purposes of paragraph (f) or paragraph (g) of subsection (1) of section twenty of the principal Act, or to the enforcement or execution of Milk (Special Designation) Regulations in respect of the use of a special designation of raw milk by a producer of such milk.

PART II

SECTION 11 (4) (c) OF AGRICULTURAL HOLDINGS ACT, 1948

11.—(4) Subsection one of this section shall not apply,—

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- (c) to a tenancy of a smallholding as defined in Part IV of the Agriculture Act, 1947, granted in pursuance of a scheme for the farming of such holdings on a co-operative basis or a scheme which provides for the disposal of the produce of such holdings or provides other centralised services for the use of the tenants of such holdings, being in any case a scheme approved by the Minister for the purposes of this paragraph.

Table of Statutes Referred to in this Act

Short Title	Session and Chapter
Petty Sessions (Ireland) Act, 1851	14 & 15 Vict. c. 93.
Destructive Insects Act, 1877	40 & 41 Vict. c. 68.
Contagious Diseases (Animals) (Pleuro-Pneumonia) Act, 1890.	53 & 54 Vict. c. 14.
Agricultural Marketing Act, 1931	21 & 22 Geo. 5. c. 42.
Cattle Industry (Emergency Provisions) Act, 1934.	24 & 25 Geo. 5. c. 54.
Livestock Industry Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 50.
Agriculture Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 70.
Food and Drugs Act, 1938	1 & 2 Geo. 6. c. 56.
Agricultural Development Act, 1939	2 & 3 Geo. 6. c. 48.
Agriculture (Miscellaneous Provisions) Act, 1943	6 & 7 Geo. 6. c. 16.
Food and Drugs (Milk and Dairies) Act, 1944...	7 & 8 Geo. 6. c. 29.
Agriculture (Artificial Insemination) Act, 1946	9 & 10 Geo. 6. c. 29.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Employment and Training Act, 1948	11 & 12 Geo. 6. c. 46.
Agricultural Holdings Act, 1948	11 & 12 Geo. 6. c. 63.

CHAPTER 38

Agricultural Marketing Act, 1949

ARRANGEMENT OF SECTIONS.

Composition of Boards.

Section.

1. Composition of marketing boards.

Relations of Boards with Ministers, etc.

2. Directions by Ministers to boards as respects certain matters.
3. Saving for, and amendments of, s. 9 of the principal Act.
4. Temporary directions by Ministers.